

Annex R

Escalation Buffer Protocol

May be Incorporated by Reference into Any Existing or Future Framework

Version 1.0 — June 2026

Closes Gap 4: Kinetic Friction and Escalation Management

Authorized Negotiators Only — Confidential — Not for Public Distribution

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Preamble

Purpose

To distinguish between localized, tactical military incidents (which shall be managed through de-confliction channels without triggering framework collapse) and strategic, bad-faith breaches (which may activate Tier 2 or Tier 3 consequences under the parent framework). To establish a rapid-response, back-channel de-confliction mechanism specifically designed to absorb field-level shocks during the critical implementation period and throughout the lifecycle of any parent framework.

Background

Recent kinetic friction in the region, including defensive military strikes near strategic facilities and intercepted ballistic missile activity, demonstrates that a zero-tolerance framework will shatter within 48 hours of entry into force. The Parties require an escalation buffer that prevents a single rogue drone, panicky missile intercept, navigational error, or localized naval encounter from automatically triggering a total kinetic relapse while executive approvals are pending or during the sensitive early days of implementation.

The Escalation Buffer Protocol does not create immunity for military incidents. It creates a *thinking window* — a structured, time-bound period during which facts can be established, intentions clarified, and de-escalation options explored before either Party feels compelled to respond with force. It preserves the core architecture of the parent framework while insulating it from the inevitable turbulence of field-level military operations in a high-tension environment.

Core Principles

Principle 1: Differentiation. Not every kinetic event is a breach. Tactical incidents that are localized, unintentional, or without strategic impact shall be managed through de-confliction. Strategic breaches that fundamentally undermine the framework shall activate consequences. The key is a rapid, neutral classification system.

Principle 2: Time, Not Immunity. The Escalation Buffer Period provides time for assessment and de-confliction. It does not provide immunity from consequences. If a Tactical Incident is later reclassified as a Strategic Breach, full consequences apply retroactively to the extent permitted by the parent framework.

Principle 3: Confidential De-Confliction. The back-channel mechanism operates under strict confidentiality to enable frank communication between the Parties without creating political vulnerabilities. Back-channel communications may not be used as evidence of breach or admission in any proceeding.

Principle 4: Self-Defense Preserved. Nothing in this Annex limits the inherent right of self-defense under international law against an ongoing armed attack. The Escalation Buffer Period applies to responses to incidents, not to defense against active aggression.

Modularity Clause

This Annex is self-contained and may be incorporated into any existing or future agreement between the Parties by a single sentence of adoption. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency between this Annex and any parent framework provision regarding the classification of military incidents, escalation buffers, or back-channel de-confliction procedures, this Annex shall govern.

Cross-Reference: This Annex operates in conjunction with **Annex O (IAEA Access and Site Integrity Protocol)**, **Annex P (Damaged Material Protocol)**, and **Annex Q (IRGC Access Compliance Protocol)**. The Escalation Buffer Period applies to kinetic incidents that occur during IAEA inspections, damaged material operations, or IRGC access compliance activities, provided such incidents are classified as Tactical Incidents under Article 2.

Article 1: Definitions

Operative and Binding

1.1 For purposes of this Annex, the following terms shall have the meanings set forth below. These definitions are specific to this Annex and shall not be imported into any parent framework unless the parent framework explicitly so provides.

1.1 Tactical Incident

A "Tactical Incident" is a localized military encounter that meets all of the following criteria:

Table R-1: Tactical Incident — Classification Criteria

CRITERION	INCLUDED	EXCLUDED (STRATEGIC BREACH INDICATORS)
Scale	Single drone or UAV intercepted or off-course; single naval vessel briefly violating stand-off distances; single rocket or missile intercepted or landing unpopulated	Multiple simultaneous strikes; sustained barrage; coordinated multi-platform attack
Casualties	No fatalities; minor injuries only; no civilian harm	10 or more fatalities; mass casualties; civilian deaths
Intent	No demonstrable hostile intent; navigational error; technical malfunction; unauthorized local action; defensive reflex	Clear order from senior leadership; pattern of hostile action; deliberate targeting of populated areas or critical infrastructure
Infrastructure	No significant infrastructure damage; cosmetic or minor damage only	Destruction of nuclear facilities; disablement of ports; destruction of Hormuz transit infrastructure
Pattern	Isolated event; first occurrence in 30-day period	Third or more similar incident within 30 days (triggers pattern aggregation under Article 2.3)
Cyber / EW	Probe without destructive effect; reconnaissance; temporary disruption	Destructive cyberattack; permanent disablement of critical systems; attack on nuclear safety systems

Tactical Incident Examples: A reconnaissance drone veers off course and crosses into the other Party's airspace; a naval patrol vessel momentarily enters the 5-nautical-mile stand-off zone while pursuing a

suspected smuggler; a missile defense system fires an interceptor at a perceived threat that turns out to be a commercial aircraft; a cyber probe scans port facility networks without attempting intrusion.

1.2 Strategic Breach

A "Strategic Breach" is an action that fundamentally undermines the framework and meets at least one of the following criteria:

- **Nuclear:** Enrichment of uranium above 3.67% U-235; diversion of fissile material from IAEA custody; tampering with IAEA monitoring equipment with intent to conceal nuclear activity
- **Kinetic:** A military attack causing 10 or more fatalities; a sustained military campaign against the other Party's forces or territory; use of weapons of mass destruction (chemical, biological, or nuclear)
- **Maritime:** A blockade of the Strait of Hormuz preventing transit of commercial vessels; deliberate sinking or disabling of commercial shipping; mining of international waters
- **Command:** A clear, verifiable order from senior leadership (Supreme Leader, President, or equivalent for Iran; President or Secretary of Defense for the United States) to commit any of the above
- **Pattern:** Three or more Tactical Incidents within any 30-day period, aggregated under Article 2.3

A Strategic Breach may only be declared through the procedures specified in Article 5. No Party may unilaterally declare a Strategic Breach during the Escalation Buffer Period.

1.3 Escalation Buffer Period

The "Escalation Buffer Period" is the 72-hour window following any incident provisionally classified as a Tactical Incident, during which:

- No Party may declare a material breach of any parent framework
- No Party may take retaliatory military action (self-defense against an ongoing armed attack is preserved)
- The back-channel de-confliction mechanism described in Article 3 shall operate at full capacity
- The JIG shall conduct its classification review under Article 2
- All core obligations of any parent framework (ceasefire, humanitarian access, IAEA monitoring, stand-off postures) remain in full force

The Escalation Buffer Period is designed to provide a structured "thinking window" — not to shield bad actors, but to prevent good-faith frameworks from collapsing due to the fog of war.

1.4 Back-Channel De-Confliction Mechanism

The "Back-Channel De-Confliction Mechanism" is the secure, 24/7 communication channel established under Article 3, routed through neutral facilitators, for the exclusive purpose of absorbing field-level shocks and enabling real-time de-escalation between the Parties. The mechanism is privileged, confidential, and operates independently of all formal diplomatic channels.

Article 2: Classification of Incidents

Operative and Binding

- 2.1** Within six (6) hours of any military incident, both Parties shall provide a preliminary classification to the JIG. The JIG shall issue a binding classification within seventy-two (72) hours. If the JIG cannot classify within 72 hours, the incident shall be automatically classified as a Tactical Incident.

2.2 A pattern of three or more Tactical Incidents within any 30-day period may be aggregated and reclassified as a Strategic Breach by JIG majority vote.

2.1 Preliminary Classification

Within six (6) hours of any military incident, each Party shall submit to the JIG a preliminary classification of the incident as one of the following:

Table R-2: Preliminary Classification Categories and Effects

CLASSIFICATION	CRITERIA	IMMEDIATE EFFECT	NEXT STEPS
Tactical Incident	Incident meets all criteria in Article 1.1	72-hour Escalation Buffer Period activates automatically	JIG conducts 72-hour review; back-channel opens
Strategic Breach	Incident meets at least one criterion in Article 1.2	No Escalation Buffer Period; Article 5 procedures apply immediately	JIG emergency session within 12 hours; Tier assessment begins
Unclear	Insufficient information to classify within 6 hours	Defaults to Tactical Incident; 72-hour buffer activates	JIG investigation proceeds under buffer; reclassification possible within 72 hours

Submission Requirements. Each Party's preliminary classification shall include:

- A factual narrative of the incident (time, location, platforms involved, sequence of events)
- The Party's assessment of intent (accidental, navigational error, defensive, hostile)
- Any available forensic data (radar tracks, GPS logs, communications intercepts, damage assessments)
- A proposed classification with supporting rationale
- Any requests for clarification from the other Party

2.2 JIG Binding Classification

The JIG shall issue a binding classification within seventy-two (72) hours of the incident, based on:

- **Forensic telemetry:** Radar tracks, satellite imagery, signals intelligence, and other technical data submitted by either Party or guarantor states
- **On-the-ground reporting:** Observations from neutral observers, where available (UN monitors, JHTA observers, third-party military attaches)
- **Submissions from both Parties:** Preliminary classifications, clarifications, and any additional evidence submitted during the 72-hour period
- **Back-channel communications:** Privileged de-confliction communications may inform the JIG's understanding of intent but shall not be used as evidence of breach or admission

Default Classification. If the JIG cannot reach a binding classification within 72 hours, the incident shall be automatically classified as a Tactical Incident. This default shall not preclude later reclassification if new evidence emerges. No Tier escalation shall occur based on an incident that receives the default classification.

Voting. JIG classification decisions shall be by majority vote of all JIG members, excluding the representatives of the two Parties directly involved in the incident. The US and Iranian JIG members may participate in deliberations but may not vote on the classification of an incident involving their respective state. This ensures neutral assessment.

2.3 Pattern Aggregation

A pattern of Tactical Incidents may indicate systematic bad faith or escalating tension that warrants reclassification. The following rule applies:

Pattern Aggregation Rule: If three (3) or more incidents are classified as Tactical Incidents within any 30-day period, the JIG shall convene a special session to review the pattern. By majority vote of its non-party members, the JIG may aggregate the pattern and reclassify it as a Strategic Breach. This reclassification is not automatic; it requires affirmative JIG determination that the pattern demonstrates systematic intent to undermine the framework, escalate tensions, or test the boundaries of the escalation buffer.

Factors the JIG shall consider in pattern aggregation include: similarity of incident types; geographic concentration; temporal clustering; whether incidents occurred during sensitive framework milestones; statements or communications from either Party; and whether either Party took corrective measures between incidents.

Article 3: Back-Channel De-Confliction Mechanism

Operative and Binding

- 3.1** A dedicated, secure, 24/7 back-channel de-confliction mechanism is hereby established, routed through the neutral facilitators specified herein.

3.2 Each Party shall designate up to three senior officials with authority to communicate through the back-channel. Designations shall be provided to the JIG within 24 hours of this Annex's entry into force.

3.3 Any communication through the back-channel shall receive an initial acknowledgment within 30 minutes and a substantive response within 4 hours.

3.4 Back-channel communications are privileged and shall not be used as evidence of breach or admission in any JIG or arbitration proceeding.

3.1 Facilitator Routing

The back-channel shall be routed through the following neutral facilitators, in descending order of priority:

Table R-3: Back-Channel Facilitator Routing

PRIORITY	FACILITATOR	ROUTING POINT	ACTIVATION TRIGGER
Primary	Islamic Republic of Pakistan	Prime Minister's Office; dedicated secure line staffed 24/7 by senior foreign ministry officials	Any Tactical Incident; either Party may request activation
Secondary	Swiss Confederation	Federal Department of Foreign Affairs; secure diplomatic channel via Bern	Primary facilitator unavailable or conflicted; either Party requests switch
Tertiary	Sultanate of Oman	Foreign Ministry; secure channel via Muscat	Both primary and secondary unavailable; JIG designates Omani facilitation

Facilitator Neutrality. Facilitators shall not edit, delay, or modify communications between the Parties except to ensure secure transmission. Facilitators may provide technical assistance (translation, secure transcription) but may not inject their own analysis or recommendations unless specifically requested by both Parties. Facilitators shall maintain complete confidentiality of all back-channel communications.

Handover Protocol. If the primary facilitator becomes unavailable, the secondary shall be activated within 2 hours. If both primary and secondary are unavailable, the tertiary shall be activated within 4

hours. The JIG Secretariat shall monitor facilitator availability and coordinate handovers.

3.2 Designated Officials

Each Party shall designate up to three (3) senior officials with authority to communicate through the back-channel. The designated officials shall:

- Hold the rank of Deputy Minister, Deputy National Security Advisor, or equivalent (military rank of Major General or above for military officials)
- Have direct access to their respective national leadership within 2 hours
- Be fluent in English or provided with a certified interpreter available on 30 minutes' notice
- Be reachable 24 hours per day, 7 days per week through secure channels
- Be empowered to negotiate de-escalation proposals and commit their government to specific actions

Designations shall be provided to the JIG Secretariat within 24 hours of this Annex's entry into force. The JIG shall distribute the designations to all facilitators. Each Party may replace a designated official with 24 hours' written notice to the JIG.

3.3 Permitted Uses and Prohibited Uses

The back-channel shall be used exclusively for the following purposes:

- **Real-time notification of Tactical Incidents:** Immediate alert that an incident has occurred, with preliminary factual summary
- **Clarification of intent:** Explanations such as "the drone that crossed the border was a navigation error, not a reconnaissance mission" or "the patrol vessel entered the stand-off zone while pursuing a suspected smuggler and has been recalled"
- **De-escalation proposals:** Concrete offers such as "if you stand down your patrol in Sector 4, we will recall our aircraft within 30 minutes"
- **Coordination of incident investigation:** Arrangements for joint forensic assessment, shared radar data, or neutral observer access
- **Confirmation of stand-downs or corrective actions:** Verification that proposed de-escalation measures have been implemented

The back-channel shall **not** be used for:

- Threats, ultimatums, or coercive demands
- Negotiation of framework terms or substantive amendments
- Public diplomacy or media messaging
- Any purpose unrelated to immediate de-confliction of a specific incident

3.4 Response Time Requirements

Table R-4: Back-Channel Response Time Requirements

TYPE OF COMMUNICATION		ACKNOWLEDGMENT	SUBSTANTIVE RESPONSE	CONSEQUENCE OF NON-RESPONSE
Tactical notification	Incident	Within 30 minutes	Within 4 hours with initial assessment	JIG automatically notified; incident classified as potentially Strategic if no response within 12 hours
Intent request	clarification	Within 30 minutes	Within 4 hours with factual explanation	JIG informed; other Party's preliminary classification given greater weight
De-escalation proposal		Within 30 minutes	Within 4 hours (accept, reject, or counter)	Proposal deemed rejected; JIG may propose alternative
Stand-down confirmation		Within 30 minutes	Within 2 hours with verification	Stand-down not confirmed; buffer period may be extended

3.5 Confidentiality and Privilege

Back-channel communications are privileged and subject to the following confidentiality protections:

- **Non-admissibility:** Back-channel communications shall not be used as evidence of breach, admission of liability, or acknowledgment of wrongdoing in any JIG proceeding, PCA arbitration, UN Security Council debate, or domestic legal proceeding.
- **No recording without consent:** Neither Party may record back-channel communications without the express written consent of the other Party and the facilitating state.
- **Limited distribution:** Back-channel communications shall be shared only with the designated officials of each Party, the active facilitator, and the JIG Secretary-General (for administrative purposes only). No wider distribution without mutual consent.
- **Confidentiality of intent clarifications:** Statements made through the back-channel clarifying intent (e.g., "the drone was off course") shall not be cited by either Party in public statements or diplomatic correspondence without mutual consent.
- **Exception for criminal conduct:** The privilege does not extend to communications evidencing war crimes, crimes against humanity, or genocide. Facilitators have a duty to report such evidence to appropriate international authorities.

Purpose of Privilege: The confidentiality of back-channel communications is essential to the functioning of this Annex. Without it, neither Party will risk frank communication for fear that clarifications or de-escalation offers will be weaponized in future disputes. The privilege creates a "safe space" for honest mistake-correction and rapid de-escalation.

Article 4: Escalation Buffer Period

Operative and Binding

4.1 Upon the occurrence of any incident classified as Tactical, or provisionally classified as Tactical pending JIG review, a 72-hour Escalation Buffer Period shall automatically activate.

4.2 During the Escalation Buffer Period, no Party may declare a material breach, take retaliatory military action, or invoke Tier 2 or Tier 3 consequences. Self-defense against an ongoing armed attack is preserved.

4.3 The Escalation Buffer Period may be extended by mutual agreement of the Parties through the back-channel, or by JIG majority vote, for up to an additional 72 hours.

4.1 Automatic Activation

The Escalation Buffer Period activates automatically upon any of the following triggers:

- Either Party submits a preliminary classification of "Tactical Incident" to the JIG
- Either Party submits a preliminary classification of "Unclear" to the JIG (defaulting to Tactical)
- The JIG Secretary-General receives credible reports of a military incident from guarantor states, neutral observers, or media sources, and neither Party has yet submitted a classification

Activation is automatic — no Party need request it, and no Party may veto it. The 72-hour clock begins at the time of the incident (as determined by the earliest credible timestamp: radar, satellite, or communications intercept).

4.2 Prohibited Actions During Buffer

During the Escalation Buffer Period, the following actions are prohibited:

Table R-5: Actions During the Escalation Buffer Period

CATEGORY	PROHIBITED	PERMITTED
Breach Declarations	No Party may declare a material breach of any parent framework; no Party may invoke Article 13 tier consequences; no Party may suspend obligations	Either Party may notify the JIG of concerns; either Party may request expedited classification review
Military Action	No retaliatory strikes; no punitive military operations; no tit-for-tat responses to the incident	Self-defense against ongoing armed attack; force protection measures; defensive repositioning; humanitarian operations
Economic Measures	No new sanctions designations; no freezing of assets; no trade restrictions imposed in response to the incident	Existing sanctions remain enforceable; routine economic measures unrelated to the incident
Diplomatic Measures	No public accusations of breach; no UN Security Council filings alleging breach; no media campaigns attributing blame	Private JIG communications; back-channel de-confliction; confidential guarantor state briefings
Framework Obligations	No suspension of ceasefire; no denial of humanitarian access; no interference with IAEA monitoring	All parent framework obligations remain in full force and must be performed

Self-Defense Exception. Nothing in this Article limits the inherent right of self-defense under international law against an ongoing armed attack. If a Tactical Incident escalates into an ongoing armed attack during the Buffer Period, the attacked Party may take necessary defensive measures and notify the JIG within 2 hours. The JIG shall determine within 12 hours whether the defensive response was proportionate. A disproportionate defensive response may itself constitute a Tactical Incident triggering a new Buffer Period.

4.3 Preserved Actions During Buffer

The Escalation Buffer Period does not suspend any obligations under any parent framework. The following obligations remain in full force throughout the Buffer Period:

- Ceasefire commitments (no offensive military operations)
- Humanitarian corridor access (zero-fee transit through Hormuz)
- IAEA inspector access to all declared facilities
- Stand-off posture requirements (naval and air)
- HEU freeze and custody transfer obligations
- Sanctions relief tranche releases on their established timeline

- All monitoring and verification obligations

A Party that violates any preserved obligation during the Buffer Period is subject to the standard breach procedures of the parent framework, unaffected by this Annex. The Buffer Period protects against incident-derived escalation; it does not create a general compliance holiday.

4.4 Extension of Buffer Period

The Escalation Buffer Period may be extended beyond the initial 72 hours under the following conditions:

- **Mutual agreement:** Both Parties agree through the back-channel to extend the buffer for a specified period (up to 72 additional hours). The extension takes effect immediately upon mutual notification to the JIG.
- **JIG majority vote:** If one Party requests extension and the other declines, the requesting Party may petition the JIG. The JIG may order an extension of up to 72 hours by majority vote of its non-party members, if it determines that additional time is necessary to complete forensic assessment or achieve de-escalation.
- **Maximum extension:** No single incident may have a Buffer Period exceeding 144 hours (72 hours initial + 72 hours extension) unless both Parties agree to a further extension in writing.

Article 5: Strategic Breach Determination

Operative and Binding

5.1 A Strategic Breach may only be declared after: (a) the 72-hour Escalation Buffer Period has expired; (b) the JIG has issued a binding classification of Strategic Breach; (c) both Parties have had an opportunity to submit evidence and argument to the JIG; and (d) the JIG has confirmed by majority vote of its non-party members that the incident meets the definition of Strategic Breach.

5.2 No Strategic Breach may be declared during the Escalation Buffer Period. If a Party declares a Strategic Breach during the Buffer Period, the declaration is void and shall be disregarded by the JIG and all guarantor states.

Strategic Breach Determination Checklist:

Table R-6: Mandatory Conditions for Strategic Breach Declaration

STEP	CONDITION	REQUIREMENT	CONSEQUENCE OF FAILURE
1	Buffer Period Expired	72 hours (or extended period) has elapsed since incident; no active Buffer Period remains	Declaration is void if made during Buffer Period
2	JIG Binding Classification	JIG has issued written classification of "Strategic Breach" with factual basis and voting record	No declaration permitted without JIG classification
3	Opportunity to Be Heard	Both Parties have submitted evidence and argument; at least one hearing held (in person or video)	Proceeding void if either Party denied opportunity to present evidence
4	Neutral Majority Vote	JIG non-party members (excluding US and Iran reps) vote by majority to confirm Strategic Breach	Tie or insufficient votes = classification fails; incident retains last valid classification
5	24-Hour Notice	Declaring Party provides 24 hours' written notice to other Party and JIG before taking military action	Military response without notice is itself a Tactical Incident triggering new Buffer

Consequences of Strategic Breach Declaration. If all five conditions are met and a Strategic Breach is declared:

- Tier 2 or Tier 3 consequences under the parent framework Article 13 shall apply proportionately

- The declaring Party shall provide 24 hours' written notice to the other Party and the JIG before taking any military action in response
- Guarantor states shall be notified immediately and may exercise their Mandatory Escalation Pause authority under parent framework Article 12
- The JIG shall convene an emergency session within 12 hours to assess proportionality of any proposed response

Pattern Aggregation Reclassification. If the Strategic Breach is declared based on pattern aggregation under Article 2.3, the consequences apply to the pattern as a whole, not to each individual Tactical Incident retroactively. Individual incidents within the pattern that were properly managed through the Escalation Buffer Period shall not be reclassified or penalized individually.

Article 6: Rogue Actor and False-Flag Protection

Operative and Binding

6.1 If an incident is caused by a rogue commander, unauthorized unit, or third-party false-flag operation, the incident shall not be attributed to the state for purposes of breach classification, provided the affected state meets the conditions specified herein.

6.2 A state that fails to disavow a rogue action within 24 hours shall be deemed to have adopted the action, and it may be classified as a Strategic Breach.

6.3 A Party that knowingly provides false information about an incident to the JIG or through the back-channel shall be subject to Tier 3 breach procedures.

Rogue Actor — Attribution Shield: An incident shall not be attributed to a state if all of the following conditions are met:

Table R-7: Rogue Actor and False-Flag Response Protocol

SCENARIO	ATTRIBUTION RULE	REQUIRED RESPONSE	CONSEQUENCE OF INACTION
Rogue Commander	Action by military officer acting without authorization from national command; not attributable if disavowed	Public disavowal within 24h; commitment to discipline; joint investigation offer; back-channel notification	Failure to disavow = adoption of action; may be classified as Strategic Breach
Unauthorized Unit	Military unit acting outside its orders; not attributable if chain-of-command demonstrates no authorization	Same as above plus: presentation of unit's original orders; identification of officers responsible	Same as above
Third-Party False Flag	Attack by non-state actor or third state designed to appear as originating from one Party; not attributable to either Party if proven	Joint investigation invitation; intelligence sharing through JIG; NTM evidence from guarantor states	If false-flag proven but either Party obstructs investigation, obstructing Party bears Tier 2 consequence
Cyber False Flag	Cyberattack using spoofed identities or compromised infrastructure to appear as originating from one Party	Technical forensic cooperation; sharing of attack signatures; joint attribution assessment through JIG technical panel	If technical evidence clearly points to one Party and that Party refuses cooperation, presumption of attribution applies

Disavowal Requirements. A valid disavowal of a rogue action must include:

- Public statement by a senior official (Minister-level or above) explicitly disavowing the action
- Commitment to disciplinary or legal proceedings against those responsible
- Offer of joint investigation to establish facts and prevent recurrence
- Notification through the back-channel within 24 hours of the disavowal

24-Hour Adoption Rule. If a state fails to issue a valid disavowal within 24 hours of the incident, the action shall be deemed adopted by the state. The incident may then be classified as a Tactical Incident (if it meets those criteria) or a Strategic Breach (if it meets those criteria) without the benefit of the rogue actor shield. The 24-hour clock begins at the time the JIG notifies the state of the incident and requests a disavowal.

False Information Penalty. A Party that knowingly provides false information about an incident to the JIG, through the back-channel, or to guarantor states shall be subject to Tier 3 breach procedures under parent framework Article 13. "Knowingly" means: the Party knew or should have known that the information was materially false; the false information was provided with intent to influence the classification process; and the false information concerned a material fact (not a minor detail or

interpretation). The JIG shall determine whether false information was provided knowingly by majority vote of non-party members.

Good-Faith Mistake Exception: A Party that provides incorrect information in good faith, based on incomplete early assessment, and subsequently corrects the record within 48 hours, shall not be subject to the false information penalty. This exception applies only to preliminary assessments that are later corrected, not to sustained false narratives.

Article 7: Incorporation by Reference

7.1 This Annex may be incorporated into any existing or future agreement between the Parties by the following adoption sentence:

"The Parties adopt Annex R (Escalation Buffer Protocol) as an operative provision of this Agreement. In the event of any inconsistency, Annex R shall govern with respect to the classification of military incidents, escalation buffers, and back-channel de-confliction procedures."

7.2 No further amendment of the parent framework is required. This Annex enters into force upon the later of: (a) signature by both Parties; or (b) the effective date of the parent framework into which it is incorporated.

Article 7-A: Relationship to Other Annexes

This Annex may operate independently of Annexes O, P, and Q, but is designed to complement them. If Annexes O, P, or Q are in force, kinetic incidents that occur during IAEA inspections, damaged material operations, or IRGC access compliance activities shall be subject to this Annex's classification and buffer procedures, provided they are not already classified as Strategic Breaches under those annexes.

If this Annex is adopted without Annex O, the Escalation Buffer Period shall still operate, but the JIG classification review under Article 2 shall rely on available evidence without the benefit of IAEA monitoring data or Annex O forensic procedures.

Article 8: Provisional Application

8.1 The Parties may agree to apply this Annex provisionally for a period of ninety (90) days, pending formal ratification or incorporation into a parent framework.

8.2 Provisional application shall be effected by an exchange of diplomatic notes between the Parties, copied to the Joint Secretariat and all guarantor states.

8.3 During provisional application, all provisions of this Annex shall be operative and binding. The back-channel de-confliction mechanism shall be activated immediately upon provisional application.

8.4 Either Party may terminate provisional application with fourteen (14) days' written notice to the other Party, the Joint Secretariat, and the IAEA Director General.

8.5 Termination of provisional application does not affect incidents that occurred during the provisional period. The classification, buffer, and consequence procedures of this Annex shall continue to apply to any incident that occurred during provisional application, even if the Annex is subsequently terminated.

Article 9: Severability

9.1 If any provision of this Annex is found by a court of competent jurisdiction or arbitral panel to be unenforceable, the remaining provisions shall remain in full force and effect.

9.2 The Parties shall promptly negotiate a replacement for any provision found unenforceable, preserving the original intent to the maximum extent possible. If the Parties cannot agree on a replacement within thirty (30) days, the matter shall be referred to the PCA for binding determination under the procedures specified in Annex O, Article 6 (or, if Annex O is not in force, under standard PCA Optional Rules).

9.3 If the unenforceable provision is essential to the Annex's operation (as determined by the JIG or, if no JIG exists, by mutual agreement of the Parties), the Parties shall enter into good-faith negotiations to restructure the Annex. During such negotiations, all other Annex provisions continue in force.

Article 10: Duration and Withdrawal

10.1 This Annex shall remain in force indefinitely, unless: (a) both Parties agree in writing to terminate it; or (b) the parent framework into which it is incorporated terminates, and the Parties do not reaffirm this Annex within ninety (90) days of such termination.

10.2 Withdrawal from this Annex without withdrawal from the parent framework is not permitted. This Annex is integral to the escalation management architecture and may not be severed unilaterally.

10.3 If the parent framework terminates and this Annex is not reaffirmed within ninety (90) days, all obligations under this Annex expire, but the back-channel infrastructure may be maintained by mutual agreement of the Parties and the facilitating states for humanitarian and de-confliction purposes independent of any parent framework.

10.4 Implementation Flexibility. The Parties recognize that military circumstances may evolve in ways not contemplated in this Annex. Timelines and technical requirements in this Annex may be adjusted by mutual written agreement of both Parties, with notification to the JIG (or, if no JIG exists, to all guarantor states). Unilateral extension or modification is not permitted. Any mutually agreed adjustment shall specify: the revised timeline or requirement; the technical justification; the conditions for return to the original timeline; and the notification provided.

Signature Block

In witness whereof, the undersigned, being duly authorized by their respective governments, have signed this Annex R: Escalation Buffer Protocol.

Done at _____, this _____ day of _____, 2026, in triplicate in the English language.

For the Islamic Republic of Iran:

Name:
Title:
Date:

For the United States of America:

Name:
Title:
Date:

Witnessed by the Back-Channel Facilitators:

Islamic Republic of Pakistan (Primary)

Swiss Confederation (Secondary)

Sultanate of Oman (Tertiary)